

**BEFORE THE
FEDERAL MARITIME COMMISSION**

EUROMARKET DESIGNS, INC.

Complainant,

v.

DOCKET NO. 25-03

MSC MEDITERRANEAN SHIPPING COMPANY
SA, OCEAN NETWORK EXPRESS PTE. LTD.
EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN
MARINE (UK) LIMITED, ITALIA MARITTIMA
SpA, EVERGREEN MARINE (HONG KONG)
EVERGREEN MARINE (SINGAPORE) PTE, LTD.
HMM COMPANY LIMITED, MAERSK A/S, CMA
CGM S.A., APEX MARITIME CO, INC., CHINA
UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES, LTD.

Respondents.

AMENDED ANSWER TO VERIFIED COMPLAINT

I. INTRODUCTION

Defendant MAERSK A/S (hereinafter referred to as "MAERSK"), by its attorneys, George W. Wright & Associates, LLC, answers the Verified Complaint, as follows:

FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "1" and defers all questions of law to the Commission.

SECOND: Denies the allegations in paragraph "2" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

THIRD: Denies the allegations alleged in paragraph "3" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "4" and defers all questions of law to the Commission.

FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "5" and defers all questions of law to the Commission.

SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "6" and defers all questions of law to the Commission.

SEVENTH: Denies the allegations in paragraph "7" of the Verified Complaint insofar as they relate to MAERSK.

EIGHTH: Denies the allegations in paragraph "8" of the Verified Complaint insofar as they relate to MAERSK.

NINTH: Denies the allegations in paragraph "9" of the Verified Complaint insofar as they relate to MAERSK.

TENTH: Denies the allegations in paragraph "10" of the Verified Complaint insofar as they relate to MAERSK.

ELEVENTH: Denies the allegations in paragraph "11" of the Verified Complaint insofar as they relate to MAERSK.

TWELFTH: Denies the allegations in paragraph "12" of the Verified Complaint insofar as they relate to MAERSK.

THIRTEENTH: Admits that MAERSK and MSC participated in the 2M Alliance until January, 2025; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph "13" of the Verified Complaint.

FOURTEENTH: Denies the allegations in paragraph “14” of the Verified Complaint insofar as they relate to MAERSK.

FIFTEENTH: Denies the allegations in paragraph “15” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

II. THE COMPLAINANT

SIXTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “16” of the Verified Complaint.

III. THE RESPONDENTS

Service Contract Respondents

MSC

SEVENTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “17” of the Verified Complaint.

ONE

EIGHTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “18” of the Verified Complaint.

NINETEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “19” of the Verified Complaint.

Evergreen

TWENTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “20” of the Verified Complaint.

TWENTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “21” of the Verified Complaint.

TWENTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “22” of the Verified Complaint.

TWENTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “23” of the Verified Complaint.

TWENTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “24” of the Verified Complaint.

TWENTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “25” of the Verified Complaint.

TWENTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “26” of the Verified Complaint.

HMM

TWENTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “27” of the Verified Complaint.

TWENTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “28” of the Verified Complaint.

Maersk

TWENTY-NINTH: Admits the allegations in paragraph “29” of the Verified Complaint.

THIRTIETH: Admits the allegations in paragraph “30” of the Verified Complaint.

THIRTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “31” of the Verified Complaint.

CMA

THIRTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “32” of the Verified Complaint.

THIRTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “33” of the Verified Complaint.

Apex Shipping

THIRTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “34” of the Verified Complaint.

CU Lines

THIRTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “35” of the Verified Complaint.

COSCO

THIRTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “36” of the Verified Complaint.

THIRTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “37” of the Verified Complaint.

THIRTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “38” of the Verified Complaint.

Wan Hai

THIRTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “39” of the Verified Complaint.

FORTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “40” of the Verified Complaint.

IV. JURISDICTION AND LEGAL AUTHORITY

FORTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “41” of the Verified Complaint and defers all questions of law to the Commission.

Service Contract Respondents

FORTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "42" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "43" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "44" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "45" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "46" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "47" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "48" of the Verified Complaint and defers all questions of law to the Commission.

FORTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "49" of the Verified Complaint and defers all questions of law to the Commission.

FIFTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "50" of the Verified Complaint and defers all questions of law to the Commission.

Non-Service Contract Respondents

FIFTY-FIRST: Admits the FMC's personal jurisdiction over MAERSK; but except as so specifically admitted, defers all questions of law to the Commission with respect to paragraph "51" of the Verified Complaint.

FIFTY-SECOND: Denies the allegations in paragraph "52" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

FIFTY-THIRD: Denies the allegations in paragraph "53" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

V. THE MATTERS COMPLAINED OF (ALLEGED FACTS)

FIFTY-FOURTH: Denies the allegations in paragraph "54" of the Verified Complaint insofar as they relate to MAERSK.

FIFTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "55."

FIFTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "56."

FIFTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "57."

FIFTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "58."

FIFTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "59."

SIXTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "60."

SIXTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "61."

SIXTY-SECOND: Denies the allegations in paragraph "62" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-THIRD: Denies the allegations in paragraph "63" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-FIFTH: Denies the allegations in paragraph "65" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-SIXTH: Denies the allegations in paragraph "66" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-SEVENTH: Denies the allegations in paragraph "67" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-EIGHTH: Denies the allegations in paragraph "68" of the Verified Complaint insofar as they relate to MAERSK.

SIXTY-NINTH: Denies the allegations in paragraph "69" of the Verified Complaint insofar as they relate to MAERSK.

SEVENTIETH: Denies the allegations in paragraph "70" of the Verified Complaint insofar as they relate to MAERSK.

SEVENTY-FIRST: Denies the allegations in paragraph “71” of the Verified Complaint insofar as they relate to MAERSK.

SEVENTY-SECOND: Admits that MAERSK intends to participate in the Gemini Cooperation as of February 1, 2025; but except as so specifically admitted, denies knowledge or information as to the other allegations in paragraph “72.”

The Service Contracts

SEVENTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “73.”

SEVENTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “74.”

SEVENTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “75.”

SEVENTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “76.”

SEVENTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “77.”

SEVENTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “78.”

MSC

SEVENTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “79.”

EIGHTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “80.”

EIGHTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "81."

EIGHTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "82."

EIGHTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "83."

HMM

EIGHTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "84."

EIGHTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "85."

EIGHTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "86."

EIGHTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "87."

ONE

EIGHTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "88."

EIGHTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "89."

NINETIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "90."

NINETY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "91."

NINETY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "92."

NINETY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "93."

Evergreen

NINETY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "94."

NINETY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "95."

NINETY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "96."

NINETY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "97."

NINETY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "98."

NINETY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "99."

ONE HUNDREDTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "100."

MSC

ONE HUNDRED FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "101."

ONE HUNDRED SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "102."

ONE HUNDRED THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "103."

ONE HUNDRED FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "104."

ONE HUNDRED FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "105."

HMM

ONE HUNDRED SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "106."

ONE HUNDRED SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "107."

ONE HUNDRED EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "108."

ONE

ONE HUNDRED NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "109."

ONE HUNDRED TENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "110."

ONE HUNDRED ELEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "111."

ONE HUNDRED TWELFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "112."

ONE HUNDRED THIRTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "113."

ONE HUNDRED FOURTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "114."

ONE HUNDRED FIFTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "115."

ONE HUNDRED SIXTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "116."

The Demurrage and Detention Charges

ONE HUNDRED SEVENTEENTH: Denies the allegations in paragraphs "117" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "117."

ONE HUNDRED EIGHTEENTH: Denies the allegations in paragraphs "118" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "118" and defers all questions of law to the Commission.

ONE HUNDRED NINETEENTH: Denies the allegations in paragraphs "119" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "119" and defers all questions of law to the Commission.

ONE HUNDRED TWENTIETH: Denies the allegations in paragraphs "120" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs "120" and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-FIRST: Denies the allegations in paragraphs "121" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or

information sufficient to form a belief as to the allegations in paragraphs “121” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-SECOND: Denies the allegations in paragraphs “122” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “122” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-THIRD: Denies the allegations in paragraphs “123” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “123” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-FOURTH: Denies the allegations in paragraphs “124” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “124” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-FIFTH: Denies the allegations in paragraphs “125” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “125” and defers all questions of law to the Commission.

ONE HUNDRED TWENTY-SIXTH: Denies the allegations in paragraphs “126” insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraphs “126” and defers all questions of law to the Commission.

MSC

ONE HUNDRED TWENTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "127."

ONE HUNDRED TWENTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "128."

ONE HUNDRED TWENTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "129."

ONE HUNDRED THIRTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "130."

ONE HUNDRED THIRTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "131."

ONE HUNDRED THIRTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "132."

ONE

ONE HUNDRED THIRTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "133."

ONE HUNDRED THIRTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "134."

ONE HUNDRED THIRTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "135."

ONE HUNDRED THIRTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "136."

Evergreen

ONE HUNDRED THIRTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “137.”

ONE HUNDRED THIRTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “138.”

ONE HUNDRED THIRTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “139.”

ONE HUNDRED FORTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “140.”

ONE HUNDRED FORTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “141.”

HMM

ONE HUNDRED FORTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “142.”

ONE HUNDRED FORTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “143.”

ONE HUNDRED FORTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “144.”

ONE HUNDRED FORTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “145.”

Maersk

ONE HUNDRED FORTY-SIXTH: Denies the allegations in paragraph “146” of the Verified Complaint.

ONE HUNDRED FORTY-SEVENTH: Denies the allegations in paragraph “147” of the Verified Complaint.

ONE HUNDRED FORTY-EIGHTH: MAERSK neither admits nor denies the allegations in paragraph “148” of the Verified Complaint because they are vague and incomprehensible.

ONE HUNDRED FORTY-NINTH: MAERSK neither admits nor denies the allegations in paragraph “149” of the Verified Complaint because they are vague and incomprehensible.

ONE HUNDRED FIFTIETH: Denies the allegations in paragraph “150” of the Verified Complaint.

CMA

ONE HUNDRED FIFTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “151” of the Verified Complaint.

ONE HUNDRED FIFTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “152” of the Verified Complaint.

ONE HUNDRED FIFTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “153” of the Verified Complaint.

ONE HUNDRED FIFTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “154” of the Verified Complaint.

ONE HUNDRED FIFTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “155” of the Verified Complaint.

ONE HUNDRED FIFTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “156” of the Verified Complaint.

Apex Shipping

ONE HUNDRED FIFTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “157” of the Verified Complaint.

ONE HUNDRED FIFTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “158” of the Verified Complaint.

ONE HUNDRED FIFTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “159” of the Verified Complaint.

ONE HUNDRED SIXTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “160” of the Verified Complaint.

CU Lines

ONE HUNDRED SIXTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “161” of the Verified Complaint.

ONE HUNDRED SIXTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “162” of the Verified Complaint.

ONE HUNDRED SIXTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “163” of the Verified Complaint.

ONE HUNDRED SIXTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “164” of the Verified Complaint.

COSCO

ONE HUNDRED SIXTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “165” of the Verified Complaint.

ONE HUNDRED SIXTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “166” of the Verified Complaint.

ONE HUNDRED SIXTY-SEVENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “167” of the Verified Complaint.

Wan Hai

ONE HUNDRED SIXTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “168” of the Verified Complaint.

ONE HUNDRED SIXTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “169” of the Verified Complaint.

ONE HUNDRED SEVENTIETH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “170” of the Verified Complaint.

ONE HUNDRED SEVENTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “171” of the Verified Complaint.

ONE HUNDRED SEVENTY-SECOND: MAERSK neither admits nor denies the allegations in paragraph “172” of the Verified Complaint as they contain no factual statements with respect to MAERSK.

ONE HUNDRED SEVENTY-THIRD: MAERSK neither admits nor denies the allegations in paragraph “173” of the Verified Complaint as they contain no factual statements with respect to MAERSK.

ONE HUNDRED SEVENTY-FOURTH: Denies the allegations in paragraph “174” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-FIFTH: Denies the allegations in paragraph “175” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-SIXTH: Denies the allegations in paragraph "176" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-SEVENTH: Denies the allegations in paragraph "177" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-EIGHTH: Denies the allegations alleged in paragraph "178" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED SEVENTY-NINTH: Denies the allegations alleged in paragraph "179" of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED EIGHTIETH: Denies the allegations alleged in paragraph "180" of the Verified Complaint insofar as they relate to MAERSK.

ONE HUNDRED EIGHTY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "181."

ONE HUNDRED EIGHTY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "182."

ONE HUNDRED EIGHTY-THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "183."

ONE HUNDRED EIGHTY-FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "184."

ONE HUNDRED EIGHTY-FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "185."

ONE HUNDRED EIGHTY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "186."

ONE HUNDRED EIGHTY-SEVENTH: Denies any unlawful conduct alleged or implied in paragraph "187" of the Verified Complaint.

ONE HUNDRED EIGHTY-EIGHTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "188."

ONE HUNDRED EIGHTY-NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "189."

ONE HUNDRED NINETIETH: Denies the allegations in paragraph "190" insofar as they relate to MAERSK; but except as so specifically denied, denies knowledge or information sufficient to form a belief as to the allegations in paragraph "190."

ONE HUNDRED NINETY-FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "191" of the Verified Complaint.

ONE HUNDRED NINETY-SECOND: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph "192" of the Verified Complaint.

ONE HUNDRED NINETY-THIRD: Denies the allegations in paragraph "193" of the Verified Complaint insofar as they relate to MAERSK.

ONE HUNDRED NINETY-FOURTH: MAERSK neither admits nor denies the allegations in paragraph "194" of the Verified Complaint as they contain no factual statements with respect to MAERSK.

VI. CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41102(c) AGAINST THE SERVICE CONTRACT RESPONDENTS

ONE HUNDRED NINETY-FIFTH: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “194” of the Verified Complaint.

ONE HUNDRED NINETY-SIXTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “196” of the Verified Complaint.

COUNT II: VIOLATION OF 46 U.S.C. § 41102(c) & C.F.R. § 545.5 AGAINST ALL RESPONDENTS

ONE HUNDRED NINETY-SEVENTH: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “196” of the Verified Complaint.

ONE HUNDRED NINETY-EIGHTH: Denies the allegations alleged in paragraph “198” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

ONE HUNDRED NINETEEN-NINTH: Denies the allegations alleged in paragraph “199” of the Verified Complaint insofar as they relate to MAERSK and defers all questions of law to the Commission.

COUNT III: VIOLATION OF 46 U.S.C. § 41104(a)(2) AGAINST THE SERVICE CONTRACT RESPONDENTS

TWO HUNDREDTH: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “199” of the Verified Complaint.

TWO HUNDRED FIRST: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “201” of the Verified Complaint.

COUNT IV: VIOLATION OF 46 U.S.C. § 41104(a)(10)
AGAINST ALL RESPONDENTS

TWO HUNDRED SECOND: Repeats and reiterates each and every admission, denial and denial of knowledge or information set forth in response to paragraphs “1” through “201” of the Verified Complaint.

TWO HUNDRED THIRD: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “203” insofar as they relate to MAERSK and defer all questions of law to the Commission.

VII. CAUSATION

TWO HUNDRED FOURTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “204” of the Verified Complaint.

TWO HUNDRED FIFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “205” of the Verified Complaint.

TWO HUNDRED SIXTH: Denies the allegations in paragraph “206” of the Verified Complaint insofar as they relate to MAERSK.

TWO HUNDRED SEVENTH: Denies the allegations in paragraph “207” of the Verified Complaint insofar as they relate to MAERSK.

VIII. REPARATIONS SOUGHT.

TWO HUNDRED EIGHTH: Denies the allegations in paragraph “208” of the Verified Complaint.

TWO HUNDRED NINTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “209.”

TWO HUNDRED TENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “210.”

TWO HUNDRED ELEVENTH: Denies the allegations in paragraph “211” of the Verified Complaint insofar as they relate to MAERSK.

TWO HUNDRED TWELFTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “212” of the Verified Complaint.

TWO HUNDRED THIRTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “213” of the Verified Complaint.

TWO HUNDRED FOURTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “214” of the Verified Complaint.

TWO HUNDRED FIFTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “215” of the Verified Complaint.

TWO HUNDRED SIXTEENTH: Denies the allegations in paragraph “216” of the Verified Complaint insofar as they relate to MAERSK.

TWO HUNDRED SEVENTEENTH: Denies knowledge or information sufficient to form a belief as to the allegations in paragraph “217” of the Verified Complaint.

FIRST AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint against MAERSK are barred in whole or in part by the applicable statutory or contractual limitation period(s).

SECOND AFFIRMATIVE DEFENSE

The Verified Complaint fails to state viable claims against MAERSK as it alleges no facts or evidence of unlawful or unreasonable practices or conduct on the part of MAERSK.

THIRD AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. cannot establish that MAERSK engaged in any unjust or unreasonable practice.

FOURTH AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. has no contractual privity with MAERSK with respect to the allegations in the Verified Complaint and MAERSK breached no contractual or other legal duty to EUROMARKET DESIGNS, INC.

FIFTH AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. lacks standing to assert the claims alleged in the Verified Complaint because it is not a direct purchaser of MAERSK's services and did not pay the disputed charges to MAERSK.

SIXTH AFFIRMATIVE DEFENSE

EUROMARKET DESIGNS, INC. lacks standing to enforce a penalty for any alleged "prohibited act" under Section 40501 of the Shipping Act.

SEVENTH AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint are barred by the equitable doctrines of laches, waiver, estoppel and/or unclean hands.

EIGHTH AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint are barred by EUROMARKET DESIGNS, INC.'s failure to mitigate the alleged damages.

NINTH AFFIRMATIVE DEFENSE

The Commission lacks subject matter jurisdiction.

TENTH AFFIRMATIVE DEFENSE

The claims alleged in the Verified Complaint are barred in whole or in part to the extent they seek recovery under the Ocean Shipping Reform Act for acts or omissions alleged to have occurred before its enactment.

ELEVENTH AFFIRMATIVE DEFENSE

MAERSK's conduct alleged in the Complaint does not constitute a practice within the meaning of 46 U.S.C. § 411052(c).

TWELFTH AFFIRMATIVE DEFENSE

The Complainant's claims against Respondents do not arise from common transactions or occurrences and MAERSK reserves the right to request severance of the claims against it.

THIRTEENTH AFFIRMATIVE DEFENSE

The claims alleged in the Complaint against MAERSK should be reduced by way of offset or recoupment with respect to any amounts owed to MAERSK by the Complainant, its agents, representatives or assignors.

FOURTEENTH AFFIRMATIVE DEFENSE

The demurrage or detention charges at issue resulted from acts or omissions of parties over whom MAERSK had no control and for whose conduct MAERSK has no liability.

FIFTEENTH AFFIRMATIVE DEFENSE

The Complainant suffered no harm and is not entitled to reparations.

SIXTEENTH AFFIRMATIVE DEFENSE

MAERSK reserves the right to amend this Answer with additional defenses or to implead a third party for indemnification.

SIXTEENTH AFFIRMATIVE DEFENSE

The Complaint fails to state a claim for reparations against MAERSK as it alleges "acts of omissions of the regulated entity are occurring on a normal, customary and continuous basis" as required by 49 C.F.R. 545.4(b)

WHEREFORE, Respondent, MAERSK A/S, demands judgment dismissing the Verified Complaint with prejudice and for such other and further relief as the Commission may deem just and proper.

Dated: February 21, 2025

GEORGE W. WRIGHT & ASSOCIATES, LLC

By: /s/ George W. Wright
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 21st day of February, 2025, the foregoing

Amended Answer to Complaint was served via electronic mail on:

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